

STATE OF INDIANA) IN THE MARION CIRCUIT / SUPERIOR COURT
)
)SS:
 COUNTY OF MARION)

JONATHAN CIESIELSKI and) CAUSE NO. _____
 JENNIFER CIESEILSKI)
)
 Plaintiffs,)
)
 v.)
)
 CLAIRE HICKEY,)
 SCHNEIDER NATIONAL CARRIERS, INC., and)
 EDWARD MORRISON)
)
 Defendants.)

COMPLAINT

Plaintiffs, Jonathan Ciesielski and Jennifer Ciesielski, by and through their attorney, state and allege the following for their Complaint against Defendant Claire Hickey, Defendant Schneider National Carriers, Inc., and Defendant Edward Morrison:

1. This case's crash occurred in Marion County, Indiana.
2. This Court has personal jurisdiction over the Defendants.
3. This Court is the preferred venue for this action under Indiana Trial Rule 75(A).
4. On February 9, 2020, Defendant Claire Hickey operated a 2011 Ford Fusion southbound in the far-left lane on I-65 South in Marion County, Indiana.
5. At said time and place, Defendant Edward Morrison operated a 2018 Kenworth tractor-trailer semi-truck, owned and maintained by Defendant Schneider National Carriers, Inc., southbound in the center lane on I-65 South.
6. At said time and place, Plaintiff Jonathan Ciesielski, was driving his family's 2008 Dodge Caravan minivan southbound in the right lane on I-65 South.

7. Defendant Claire Hickey owed Plaintiff Jonathan Ciesielski, Plaintiff Jennifer Ciesielski, and others on the roadway the duties to exercise reasonable care while driving, to keep the vehicle she was driving under proper control, to keep a proper lookout, and to obey Indiana's traffic laws.

8. Defendant Edward Morrison owed Plaintiff Jonathan Ciesielski, Plaintiff Jennifer Ciesielski, and others on the roadway the duties to exercise reasonable care, to keep a proper lookout, to keep the tractor-trailer he was operating under proper control, to not drive said tractor-trailer on icy roads, to obey Indiana's traffic laws, and to obey the Federal Motor Carriers Safety Administration's Regulations.

9. Defendant Schneider National Carriers, Inc. owed Plaintiff Jonathan Ciesielski, Plaintiff Jennifer Ciesielski, and others on the roadway the duties to exercise reasonable care, to keep their tractor-trailer in proper mechanical condition, to obey Indiana's traffic laws, and to obey the Federal Motor Carriers Safety Administration's Regulations.

10. Defendant Claire Hickey breached the foregoing duties in Paragraph 7.

11. Defendant Edward Morrison breached the foregoing duties in Paragraph 8.

12. Defendant Schneider National Carriers, Inc. breached the foregoing duties in Paragraph 9.

13. As a direct and proximate result of Defendant Claire Hickey's acts and omissions, Defendant Claire Hickey carelessly and negligently lost control of the vehicle she was driving, and the vehicle she driving spun out-of-control into I-65 South's center-lane and in front of Defendant Schneider National Carriers' tractor-trailer being operated by Defendant Edward Morrison traveling southbound in the center-lane.

14. As a direct and proximate result of Defendant Edward Morrison's acts and omissions and Defendant Schneider National Carrier, Inc.'s acts and omissions, Defendant Edward Morrison carelessly and negligently swerved into the right-lane of I-65 South and crashed the front-passenger side of the tractor-trailer he was operating into the rear-driver side of Plaintiff Jonathan Ciesielski's minivan – while Mr. Ciesielski was traveling southbound in I-65 South's right-lane.

15. As a direct and proximate result of said crash, Plaintiff Jonathan Ciesielski's minivan spun approximately 720 degrees and into I-65 South's center lane (where the front of Mr. Ciesielski's minivan ended up facing northbound in the southbound lanes). Defendant Edward Morrison then negligently and violently crashed the front of the tractor-trailer he was operating head-on into the front of Mr. Ciesielski's minivan.

16. As a direct and proximate result of the Defendants' acts and omissions, Mr. Ciesielski sustained permanent and severe bodily injuries; physical pain; mental suffering; physical impairments; fright; lost time; loss of enjoyment of life; diminished quality of life; medical bills; and other yet to be discovered damages that resulted from the Defendants' negligence and/or recklessness.

17. As a further direct and proximate result of the Defendants' acts and omissions, Mr. Ciesielski will suffer the following damages in the future: physical pain; mental suffering; physical impairments; lost time; loss of enjoyment of life; diminished quality of life; medical bills; loss of housekeeping and household management services; and other yet to be discovered damages that resulted from the Defendants' negligence and/or recklessness.

18. At all times relevant herein, Plaintiffs Jonathan Ciesielski and Jennifer Ciesielski, were and are married and were and are husband and wife.

19 As a further direct and proximate result of the Defendants' acts and omissions, Plaintiff Jennifer Ciesielski has suffered and will continue to suffer the following damages in the future: loss of consortium; loss of companionship; loss of society; loss of services; and other yet to be discovered damages that resulted from the Defendants' negligence and/or recklessness.

20. Defendant Edward Morrison was acting for the benefit of and under the direction of Defendant Schneider National Carriers, Inc. at the time of the crash.

21. Defendant Edward Morrison was an employee and/or agent of Defendant Schneider National Carriers, Inc. and was acting within the scope of his employment and/or agency with Defendant Schneider National Carriers, Inc. at the time of the crash.

22. Defendant Schneider National Carriers, Inc. is vicariously liable for Defendant Edward Morrison's negligence and/or recklessness in this case.

WHEREFORE, Plaintiffs, Jonathan Ciesielski and Jennifer Ciesielski, respectfully seek the entry of judgment against Defendant Claire Hickey, Defendant Schneider National Carriers, Inc., and Defendant Edward Morrison in an amount to justly compensate them for their damages, for the costs of this action, prejudgment interest, and for all other relief this Honorable Court finds just and proper.

Respectfully submitted,

/s/ David M. Cox IV

David M. Cox IV

Indiana Attorney Number: 31272-45

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Attorney for Plaintiffs

JURY DEMAND

Plaintiffs, Jonathan Ciesielski and Jennifer Ciesielski, by and through their attorney,
hereby demand a jury trial as to all issues contained in their Complaint.

Respectfully submitted,

/s/ David M. Cox IV

David M. Cox IV

Indiana Attorney Number: 31272-45

Attorney for Plaintiffs